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JUDGMENT SHEET
LAHORE HIGH COURT
MULTAN BENCH MULTAN
JUDICIAL DEPARTMENT

Writ Petition No.15919/2025

Moazzam Haq **Versus** Full Bench NIRC etc.

J U D G M E N T

Date of Hearing:	27.01.2026
Petitioner by:	Mr. Muhammad Yafis Naveed Hashmi, Advocate.
Federation by:	Mr. Imtiaz Haider Maitla, Assistant Attorney General.
Respondents No.6 to 8 by:	Mirza Ilyas Baig, Advocate. Mr. Muhammad Rafi Raza, Advocate.

Anwaar Hussain, J. The petitioner before this Court was engaged by M/s Prime Human Resource Services (Pvt.) Limited—respondent No.8 (“**PHRL**”), for rendering services as a Health Facilitation Officer for State Life Insurance Corporation—respondent No.3 (“**SLIC**”). Upon termination of his engagement, along with others, the petitioner approached the National Industrial Relations Commission (“**NIRC**”) by filing a grievance petition.

2. SLIC took a categorical stance that the petitioner was not its workman and that no employer–employee relationship existed between them. It was asserted that the petitioner was employed by PHRL, which exercised control over the petitioner’s employment. PHRL also acknowledged that the petitioner was its employee, who was rightly terminated by PHRL, itself.

3. The learned Single Bench of the NIRC, *vide* order dated 14.04.2025, observed that the controversy required recording of

evidence. During the proceedings before the learned Single Bench, the petitioner filed application(s) seeking production of certain documents admittedly in the possession of SLIC and PHRL, which were stated to be relevant for determining the nature and scope of the relationship between the parties. However, upon production of certain documents pursuant to the said application(s), on 16.05.2025, learned counsel for all the parties got recorded their respective statements that the matter may be decided on the basis of the available record, without recording of evidence. Thereafter, the grievance petition filed by the petitioner was accepted *vide* order dated 23.06.2025. Aggrieved thereof, SLIC and PHRL preferred appeals before the learned Full Bench of the NIRC and appeal of SLIC was allowed, and through the impugned order dated 02.10.2025, the matter was remanded to learned Single Bench of NIRC, for decision afresh after recording of evidence. The said order has been assailed before this Court on the ground that once the parties had consented to disposal of the case on the basis of the available record, the learned Full Bench of the NIRC lacked the authority to direct recording of evidence, particularly in view of Regulation 60 of the National Industrial Relations Commission (Procedure and Functions) Regulations, 2016 (“**the Regulations**”), which envisages expeditious disposal of cases.

4. Arguments heard. Record perused.

5. The legal question that arises for determination by this Court is articulated as under:

Whether the learned Full Bench of the NIRC is competent to remand the matter for recording of evidence of the parties in the presence of the consent of the parties before the learned Single Bench to decide the case on the basis of the available record, particularly in the light of Regulation 60 of the Regulations, which

permits dispensation with recording of the evidence?

6. Before rendering an opinion, it would be appropriate to reproduce Regulation 60, which reads as under:

“60. Power to curtail examination, etc.”(1) In the interest of expeditious disposal of the business before the Commission, it may direct any examination or cross-examination or re-examination to be cut short or dispensed with.

(2) In matters relating to industrial disputes, the Commission may endeavour to remove differences between the parties and secure an amicable settlement of the issues before it.”

Perusal of the above-quoted Regulation 60 indicates that it is designed to facilitate expeditious disposal of the industrial disputes, by permitting adjudication on the basis of the available record where recording of evidence is not necessary, or where it can be curtailed or dispensed with. However, the scope of Regulation 60 is neither absolute nor exercisable at the cost of effective factual determination. The dispensation with recording of evidence contemplated therein is conditional upon the sufficiency and clarity of the material already available on the record. Regulation 60 does not authorize adjudication of disputed or jurisdictional facts in the absence of categorical proof merely in the name of expeditious decision as the same would be truncated one. Needless to observe that while expeditious disposal of labour and industrial disputes is a desirable objective, it cannot be achieved at the cost of correctness or fairness. Matters involving determination of employment status or the existence or denial of an employer–employee relationship invariably is a jurisdictional fact, the establishment whereof is a condition precedent for exercise of jurisdiction by the NIRC. This ordinarily requires recording of evidence, particularly where such facts are seriously

contested. In such circumstances, remand for recording of evidence is not a procedural excess but a judicial necessity.

7. Moreover, a Court of law or Tribunal cannot lose sight of the fact that even where parties consent to the disposal of a matter on the basis of the existing record, such consent does not eclipse the adjudicatory responsibility of the Court or a Tribunal. Such consent, howsoever valid and voluntarily given, cannot compel a Court or Tribunal to decide a matter on an incomplete or inadequate factual foundation, particularly where the controversy hinges upon disputed questions of fact requiring examination, verification, or confrontation of documents with the party to whom they relate, especially in matters concerning employment status of the aggrieved person.

8. An appellate body, such as the learned Full Bench of the NIRC, while exercising its jurisdiction, is equally under a statutory obligation to examine whether the decision rendered by the learned Single Bench rests upon sound legal and factual premises. More so, where the controversy between the parties is not ancillary but foundational—namely, whether an employer–employee relationship existed between the petitioner and SLIC, or whether the petitioner stood exclusively in contractual employment with PHRL. This issue goes to the very root of the jurisdiction of the NIRC and the maintainability of the grievance petition. In the present case, the question as to who was the real employer of the petitioner could not be conclusively determined merely on the basis of pleadings or unproved documents placed on the record, which were not confronted to the officials who issued the same. Resolution of this controversy necessarily required examination of contractual arrangements, control and supervision mechanisms, and other relevant material, which in turn called for proper proof

through recording of evidence. Therefore, the appellate authority, i.e., the learned Full Bench of the NIRC, was not bound by the procedural concessions of the parties where adherence thereto would result in a failure of justice.

9. The matter can also be examined from another perspective. Even if it is assumed that no consent had been given by learned counsel for the parties before the learned Single Bench of the NIRC to decide the grievance petition on the basis of the documents placed on record, and the learned Single Bench, on its own assessment, had formed the view that recording of evidence was unnecessary and proceeded to decide the matter by invoking its powers under Regulation 60 of the Regulations, the appellate jurisdiction of the learned Full Bench of the NIRC would not stand curtailed. The discretion exercised by the learned Single Bench under Regulation 60 is always subject to the appellate scrutiny, particularly where such exercise results in determination of foundational or jurisdictional facts without adequate proof. Therefore, it becomes irrelevant whether the learned Single Bench of the NIRC proceeded to decide the matter on the basis of consent of learned counsel for the parties without recording of evidence as the learned Full Bench was fully competent to interfere and remand the matter for recording of evidence, if it formed the opinion that the controversy could not have been justly resolved without proper evidentiary examination.

10. In view of the above discussion, the answer to the legal question formulated hereinabove is answered in the affirmative. The discretion exercised by the learned Single Bench under Regulation 60 of the Regulations to dispense with the recording of evidence is neither absolute nor immune from appellate scrutiny and the learned Full Bench of the NIRC, remains fully competent

to examine whether the controversy could have been justly resolved without recording of evidence by giving cogent reasons as to why such dispensation was not appropriate. In the present case, the learned Full Bench has assigned cogent reasons for interference, noting that the issue involved determination of a foundational and jurisdictional fact, which could not have been conclusively adjudicated without proper recording of evidence.

11. For the foregoing reasons, this petition is devoid of merit and is hereby **dismissed**.

(ANWAAR HUSSAIN)
Judge

Approved for reporting

Judge

Akram